

IN THE SUPREME COURT OF PAKISTAN
(Advisory Jurisdiction)

PRESENT:

MR. JUSTICE IFTIKHAR MUHAMMAD CHAUDHRY, CJ
MR. JUSTICE MIAN SHAKIRULLAH JAN
MR. JUSTICE TASSADUQ HUSSAIN JILLANI
MR. JUSTICE NASIR-UL-MULK
MR. JUSTICE JAWWAD S. KHAWAJA
MR. JUSTICE ANWAR ZAHEER JAMALI
MR. JUSTICE KHILJI ARIF HUSSAIN
MR. JUSTICE TARIQ PARVEZ
MR. JUSTICE MIAN SAQIB NISAR
MR. JUSTICE SARMAJAL JALAL OSMANY
MR. JUSTICE AMIR HANI MUSLIM

REFERENCE NO. 1 OF 2011

[REFERENCE BY THE PRESIDENT OF THE ISLAMIC
REPUBLIC OF PAKISTAN UNDER ARTICLE 186 OF
THE CONSTITUTION TO REVISIT THE CASE OF
ZULFIQAR ALI BHUTTO REPORTED AS PLD 1979 SC
38 & 53]

On behalf of President:	Dr. Babar Awan, Sr. ASC
On Court notice:	Moulvi Anwarul Haq Attorney General for Pakistan Mr. Dil Muhammad Khan Alizai, DAG Mr. Azam Khan Khattak, Addl. AG, Balochistan Mr. Asadullah Chamkani, AG, KPK Mr. Khadim Hussain, Addl. AG, Punjab Mr. Razzaq A. Mirza, ASC Mr. Muhammad Shafi Memon, Addl. AG, Sindh
<i>Amicus Curiae:</i>	Mr. Abdul Hafeez Pirzada, Sr. ASC Ch. Aitzaz Ahsan, Sr. ASC Mr. Makhdoom Ali Khan, Sr. ASC Mr. Tariq Mahmood, Sr. ASC Barrister Zahur-ul-Haq, Sr. ASC Mr. Abdul Latif Khan Afridi, ASC Mr. Yasin Azad, ASC/ President, SCBA

Complainant: Mr. Ahmad Raza Khan Kasuri, Sr. ASC
(in person)

In CMA No. 1629/2011 *Nemo.*

In CMA No. 1758/2011 *Nemo.*

Date of hearing: 05.01.2012
-.-.-

ORDER

IFTIKHAR MUHAMMAD CHAUDHRY, CJ. – Dr. Babar

Awan was enrolled as Advocate of this Court on 29.05.2000 and status of Sr. ASC was conferred upon him on 29.05.2008. Presently, he is appearing in Reference No. 1 of 2011 sent by the President of Pakistan under Article 186 of the Constitution. Hearing of the Reference, considering it to be one of the most important matters, is pending in this Court for the last few months. On 04.01.2012, a notice of contempt of Court was issued to him by a Bench of this Court comprising two Hon'ble Judges in respect of a press conference addressed by him on 01.12.2011. After receipt of notice, he addressed the electronic media at the podium of the Supreme Court Gate and perhaps when inquired from him about issuance of the notice, he stated that in the past too, criminal cases were registered against him when he was conducting the cases of Mohtarama Benazir Bhutto and the incumbent President Mr. Asif Ali Zardari and concerning the contempt notice issued to him, he uttered the following words: -

"نوٹس ملایا، ککھ نہ پایا، کیوں سو بنیاں نال رکھا کراں، میں لکھ واری بسم اللہ کراں۔"

This utterance made on the electronic media was telecast by different channels, which believably had been seen by a large number of people. The content of the utterance, the gestures made and the body language were indicative of an attempt to ridicule the Court. We have

inquired from Dr. Babar Awan about it, who instead of denying the same, stated that the words uttered on the television in fact reflected respect. To fully appreciate the content and the manner of what he said, we asked the Secretary Information to make arrangement for displaying the relevant video clips. Accordingly, on multimedia affixed in the courtroom, DVD was played which was not only watched by the senior members of the bar, but also by Mr. Yasin Azad, President, Supreme Court Bar Association and Mr. Latif Afridi, Vice Chairman, Pakistan Bar Council. Both of them have condemned the same. Mr. Latif Afridi went to the extent of saying that these things should not have happened and in any case he would stand by the judiciary in the matter. We believe that interaction between the Bench and the Bar depends upon mutual respect. Irrespective of the fact which Bench issued the notice, the fact remains that it was part of the judiciary, therefore, a person who is a senior counsel appearing before the Supreme Court, instead of uttering the words reproduced above and making gestures as if he had no care for the issuance of the notice because prior to the utterance under consideration, he said that in the past too he had been charged with criminal cases for conducting the cases of Mohtarama Benazir Bhutto and Asif Ali Zardari. We do not know those facts, but *prima facie*, we are of the view that the conduct of Dr. Babar Awan is unbecoming of an Advocate of the Supreme Court, therefore, we issue notice to him under Rule 30 of Order IV of the Supreme Court Rules, 1980 to explain as to why his name be not removed from the Roll of the Advocates of this Court.

2. Registrar is directed to hand over copies of the notice and the DVD to Dr. Babar Awan, which shall be furnished to him by the Secretary Information during the course of the day. He may file reply

to the notice on or before 09.01.2012. Proceedings of the Reference are also postponed till the next date of hearing.

IFTIKHAR MUHAMMAD CHAUDHRY, CJ.

MIAN SHAKIRULLAH JAN, J.

TASSADUQ HUSSAIN JILLANI, J.

NASIR-UL-MULK, J.

JAWWAD S. KHAWAJA, J.

ANWAR ZAHEER JAMALI, J.

KHILJI ARIF HUSSAIN, J.

TARIQ PARVEZ, J.

MIAN SAQIB NISAR, J.

SARMAD JALAL OSMANY, J.

AMIR HANI MUSLIM, J.

Islamabad, the
5th January, 2012